Tehsildar could preside over the *Jirga* hearing. The penalty for murder was life imprisonment, and there was no death penalty.

The regular legal system resulted in judicial delays. Swat, usually known for its speedy justice, now had cases pending for decades. The ideological underpinnings of the old system were also lost, and a religious void was created. The people were slowly disillusioned and sought reforms based on the traditional Islamic practices.

Sufi Muhammad of *Tehreek-e-Nifaz-Shariat-e-Mohammadi* and his son-in-law Fazlullah of Tehreek-e-Taliban Pakistan, Swat Chapter, exploited the situation and resorted to insurgency. The government entered into agreement with Sufi Muhammad to introduce Nizam-e-Adl in Swat. The insurgents, however, continued their activities and violated the agreement. Thus, an army operation was launched and the insurgents were subdued (Ali & Khan, 2010).

The Nizam-e-Adl Regulation 2009 was retroactively effective from 15 March 2009. The system has three tiers, namely ilaqa (local area) court, the zila (district) court and the Darul qaza, which acts as a supreme court (Shoaib, 2009). According to this Regulation, the criminal and civil cases were to be disposed of in the stipulated times of four and six months, respectively. However, it could not become fully functional due to the dearth of Qazis, trained lawyers, apathy of the government and so on. It became a rueful replica of jaded judicial system prevalent in the rest of Pakistan.

Its repercussions could be disastrous. The World Development Report 2011 stated that 'In places like Swat, formal systems for the provision of justice were weak or broken down'. It also warned that 'At the local level, this breakdown opens gaps not only in the core criminal justice system, but also in the regulation of land and family disputes':

> Such gaps have led to popular frustration and have opened opportunities to violent opposition movements such as the Taliban in both Afghanistan and Pakistan, which have in some areas of the country established a shadow presence offering an alternative local dispute resolution system (*Dawn*, 2011).

The Swati Taliban were closely linked with Waziristani TTP. At a higher level, they were a component of the Hakimullah Mehsud-led TTP (*The News International*, 2008).